

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: HON. BENJAMIN T REYES II
HEARING DATE: 02/18/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: MSC21-01215 CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH HEARING ON ORDER TO SHOW CAUSE IN RE: RE DISMISSAL FOR FAILURE TO APPEAR BY PLAINTIFF'S COUNSEL DAWN M. SMITH AT THE 12/19/25 CMC AND TRIAL SETTING CONFERENCE. FILED BY:

TENTATIVE RULING:

Upon review of the Declaration of Counsel Dawn M. Smith filed on December 22, 2025, the Court finds good cause to discharge the Order to Show Cause. This Order to Show Cause re dismissal is discharged.

2. 9:00 AM CASE NUMBER: C24-01992
CASE NAME: DOROTHY CAMON VS. CALIFORNIA STATEWIDE COMMUNITIES DEVELOPMENT
AUTHORITY
HEARING ON DEMURRER TO:
FILED BY:
TENTATIVE RULING:

Defendant California Statewide Communities Development Authority ("CSCDA") demurs to the First Amended Complaint by plaintiff, Dorothy Fay Camon. Plaintiff has filed an opposition. The demurrer is **sustained with leave to amend**. In amending, plaintiff shall list the defendants against whom each cause of action is being asserted, for clarity.

Any amended complaint shall be filed on or before March 2, 2026.

I. Factual and Procedural Background

Plaintiff is an elderly homeowner in Contra Costa County who alleges that she was the victim of a network of entities participating in California's Property Assessed Clean Energy ("PACE") home improvement financing program. She alleges fraudulent misrepresentations on the part of a contractor and salesperson, Shai Barak, who pushed various home improvement work under the PACE program. Among the allegations are that her electronic signature was forged, she was sold products that she should not have been sold, and that the work was defective and went unfinished.

The action targets multiple defendants, including defendant CSCDA, a public agency. (First Amended Complaint, "FAC," ¶16.) CSCDA implements assessments against the property of homeowners participating in the PACE program. (*Ibid.*) CSCDA "contracted with Contra Costa County and agreed to take responsibility for disputes related to PACE assessment liens and related levy responsibilities." CSCDA "partnered" with defendant Pace Funding Group, LLC to "solicit" property owners like plaintiff. (FAC, ¶17.)

Plaintiff filed this action on July 29, 2024, alleging causes of action for (1) Fraud – Intentional Misrepresentation, (2) Fraud – Concealment, (3) Negligent Misrepresentation, (4) Rescission, (5) Financial Elder Abuse, (6) Unfair Competition, and (7) Injunctive Relief Under Consumer Legal Remedies Act (Civil Code § 1750 *et seq.*). After a demurrer by defendants Citywide Roofing and PACE Funding Group, LLC, was sustained, plaintiff filed the FAC. The FAC continues to allege the same causes of action. Both Citywide Roofing and PACE Funding Group answered. CSCDA filed this demurrer after efforts to meet and confer.

II. Meet and Confer Efforts

According to the Declaration of Ryan A. Drossel, CSCDA "raised the issues in the foregoing motion with opposing counsel on September 18, 2025," but the parties were "unable to informally resolve the matters presented."

Code of Civil Procedure section 430.41, subdivision (a) states that, before filing a demurrer, "the demurring party shall meet and confer *in person, by telephone, or by video conference* with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." Following such efforts, a declaration filed in support of the demurrer must state "[t]he means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer." (Code

Civ. Proc., § 430.41 (a)(3)(A).)

CSCDA fails to indicate how parties met and conferred (in person, by telephone, or by video conference). However, failure to strictly comply with the meet and confer statute is not a permissible basis for either sustaining or overruling a demurrer. Given the improbability that meeting and conferring in the correct format would change the results here (assuming such meet and confer was not already in the correct format), the Court proceeds with its ruling.

CSCDA generally demurs, arguing plaintiff fails to state sufficient facts to constitute a cause of action against CSCDA. (See Code of Civil Procedure § 430.10 (e).)

III. Standard

The limited role of a demurrer is to test the legal sufficiency of a complaint. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A complaint will be upheld if it provides the defendant with "notice of the issues sufficient to enable preparation of a defense." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) The grounds for a demurrer must appear on the face of the challenged pleading, or from matters subject to judicial notice. (Code Civ. Proc. § 430.30(a).) In evaluating the sufficiency of the challenged pleading, all material facts properly pleaded are treated as true, but not contentions, deductions, or conclusions of fact or law. (*Moore v. Conliffe* (1994) 7 Cal.4th 634, 638, citing *Serrano v. Priest* (1971) 5 Cal.3d 584, 491.)

IV. Evidentiary Matters

Plaintiff requests judicial notice of various documents. The Court **grants** the request with respect to the FAC and the attached roster of public agencies and the CSCDA's respective omission from the roster. The request is otherwise **denied**. There is no reference to these materials in the Memorandum of Points and Authorities in Support of the Opposition, nor are they attached to the RJN.

V. Discussion

A. Government Claim Presentation Requirements

Defendant argues that none of the causes of action can be brought against it because plaintiff fails to allege that she complied with Government Claim presentation requirements. Plaintiff responds that CSCDA is not a public entity because it did not comply with its obligations to register with the Secretary of State. Plaintiff cites Government Code, § 946.4, which provides, in relevant part:

(a) Where provision is made by or pursuant to law that no suit may be brought against a public agency as defined in Section 53050 unless and until a claim is presented to the agency, the failure to present a claim does not constitute a bar or defense to the maintenance of a suit against the public agency if, during the 70 days immediately following the accrual of the cause of action, either of the following apply:

(1) No statement pertaining to the public agency is on file, or is placed on file, in the Registry of Public Agencies in the office of the Secretary of State and of the county clerk of each county in which the public agency then maintains an office, as required by Section 53051.

(2) A statement or amended statement pertaining to the public agency is on file, or is placed on file, in the Registry of Public Agencies in the office of the Secretary of State and of the county clerk of each county in which the public agency then maintains an

office, but the information contained therein is so inaccurate or incomplete that it does not substantially conform to the requirements of Section 53051.

(b) On any question of fact arising within the scope of paragraphs (1) and (2) of subdivision (a), the burden of proof is upon the public agency.

In its reply, CSCDA generally avoids this point about its failure to register, instead arguing plaintiff must specifically plead facts constituting an excuse to comply with presentation requirements. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

The Court disagrees with plaintiff's argument that CSCDA is not a public entity. Plaintiff conceded this point by alleging in paragraph six of the FAC that CSCDA "is an entity created under the Joint Exercise of Powers Act, and is considered a 'public agency.'"

Still, controlling cases cited by plaintiff and ignored by CSCDA, hold that, at a minimum, a plaintiff must be allowed to amend the complaint to allege the defendant's failure to register as an excuse for plaintiff not presenting a claim. In *Wilson v. San Francisco Redevelopment Agency*, the California Supreme Court reversed a trial court order and required the demurrer to be overruled. The plaintiff there failed to comply with presentation requirements, but was excused where the demurring defendant had failed to file information with the Secretary of State to be placed on the roster of public agencies (now called the "Registry of Public Agencies"). (*Wilson v. San Francisco Redevelopment Agency* (1977) 19 Cal.3d 555, 560 ["a fair reading of the sections in question suggests that the agency's failure to comply with section 53051 entitles the claimant to ignore the claim-filing requirement entirely"].)

In a more recent decision, *Black v. Los Angeles County Metropolitan Transportation Authority* (2025) 116 Cal.App.5th 677, the Second District Court of Appeals held that the trial court abused its discretion in sustaining a demurrer without leave to amend by Public Transportation Services Corporation, where plaintiff opposed the demurrer on the basis that defendant (an organizational unit of the LA County Metropolitan Transportation Authority) had failed to comply with the registration requirements of Government Code, § 53051.

The purpose of the statutes requiring a public agency roster to be maintained is "to provide reliable information about local public agencies and thus facilitate service of process on them." Accordingly, relieving plaintiffs of claims presentation requirements is incentive for public entities to comply with registration requirements. (*Wilson, supra*, 19 Cal.3d at 561-562.)

Defendant separately argues that any potential government claim by plaintiff against CSCDA would be time-barred. (Memorandum of Points and Authorities, 17:4-18.) This argument lacks merit as it is derivative of claim presentation being required in the first place. *Wilson* rejected the timing argument by pointing out that, given the purposes of the public roster (now referred to as a "registry"), "defendant's noncompliance with section 53051 might well have contributed to plaintiff's delay in filing." (*Id.* at 562.)

The demurrer is sustained on this basis that plaintiff fails to address claim filing whatsoever, but plaintiff has leave to amend to add her allegations concerning excuse based on lack of registration by CSCDA.

B. Facts Establishing CSCDA's Liability / Sovereign Immunity Bars Plaintiffs' Claims (All C/A)

CSCDA correctly argues the FAC contains no citations to a statutory basis, and insufficient facts, to establish its liability for plaintiff's harm. The California Supreme Court has summarized how

public entity liability may or may not be established:

Under the Government Claims Act (Gov. Code, § 810 et seq.), a public entity is not liable “[e]xcept as otherwise provided by statute.” (Gov. Code, § 815; see *Hoff v. Vacaville Unified School Dist.* (1998) 19 Cal.4th 925, 932 [80 Cal. Rptr. 2d 811, 968 P.2d 522].) If the Legislature has not created a statutory basis for it, there is no government tort liability. (*Hoff*, at p. 932.)

(*State ex rel. Dept. of California Highway Patrol v. Superior Court* (2015) 60 Cal.4th 1002, 1009.)

Because recovery against a public entity is based on statute, the complaint must set forth facts sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are inadequate. (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal. App. 3d 1, 5.) Facts supporting separate theories of liability must be stated separately. (*Nestle v. City of Santa Monica* (1972) 6 Cal. 3d 920, 939.) The plaintiff must also plead facts sufficient to show that the cause of action lies outside the scope of any applicable statutory immunity. (*Giannuzzi v. State of California* (1993) 17 Cal. App. 4th 462, 467; *Keyes v. Santa Clara Valley Water Dist.* (1982) 128 Cal. App. 3d 882, 886.)

Without citing a single statute that would make CSCDA liable, plaintiff’s allegations are insufficient. She mentions CSCDA only a handful of times in the FAC and none of the references clearly describes a theory of liability against CSCDA.

In her opposition to the demurrer, plaintiff appears to rely on a theory of vicarious liability for conduct of individuals, citing Government Code §815.2, which is part of the Government Claims Act and provides for liability in respondeat superior: “A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee” (Gov. Code, § 815.2, subd. (a).) The Government Claims Act defines “employee,” as used in section 815.2, to include the following: “an officer, judicial officer as defined in Section 327 of the Elections Code, employee, or servant, whether or not compensated,” but the section specifically excludes “an independent contractor.” (Gov. Code, § 810.2.)

None of the above argument is reflected in the allegations of the FAC. Plaintiff has failed to plead “injury proximately caused by” a CSCDA “employee.” Any agency allegations relate to other individuals and entities. (See, e.g., FAC ¶132.) Even if plaintiff had alleged such relationship, several provisions in the Government Code would appear to provide CSCDA with immunity. These include Government Code section 818.8, related to immunity for injuries caused by a public entity’s employee’s negligent and intentional misrepresentations, and Government Code section 860.2, related to immunity for injuries caused by collection of a tax.

Accordingly, the demurrer must be sustained to all causes of action for failure to state sufficient facts to constitute a cause of action.

C. UCL (Sixth C/A)

CSCDA argues it is not subject to liability under the Unfair Competition Law (Bus. & Prof. Code § 17200 et seq.) and cites several relevant authorities holding that government entities are not “persons” as described in that statutory scheme. (See, e.g., *People for Ethical Treatment of Animals, Inc. v. California Milk Producers Advisory Bd.* (2005) 125 Cal.App.4th 871, 875 [“public entities, including CMAB, are not “persons” who are subject to suit under the UCL”].) Plaintiff responds that

vicarious liability is alleged so the demurrer should be overruled. This position lacks merit. The demurrer to the sixth cause of action is sustained.

D. CRLA (Seventh C/A, wrongly titled as a UCL claim)

The CSCDA demurs to the seventh cause of action for violation of the Consumer Legal Remedies Act (“CLRA”). Though the demurer does not cite any authority specifically holding that the CRLA does not apply to public entities, it reasons (and cites authority for the position) that, absent specific statutory language imposing liability, a statutory scheme does not, by default impose liability on government entities. Plaintiff fails to adequately refute the principle. Accordingly, the demurrer to the seventh cause of action is sustained.

**3. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.**

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference trails the hearings on the demurrers and motions to strike for Lines 8-11. Counsel are ordered to appear via Zoom for the CMC, unless Lines 8-11 are uncontested. If Lines 8-10 are uncontested, then the CMC shall be continued to June 5, 2026 at 8:30 a.m. in Dept. 16.

Law & Motion

**4. 9:00 AM CASE NUMBER: C22-01601
CASE NAME: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY
COMPANY VS. MATT DELIMA**

***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION OF DOCUMENTS OF DEFENDANT
KNM CLAYTON, LLC AND FOR MONETARY SANCTIONS AGAINST DEFENDANT KNM CLAYTON, LLC IN
THE AMOUNT OF \$885.00**

FILED BY: CLAYTON VALLEY SHOPPING CENTER, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Summary

Plaintiff and Cross-Defendant Clayton Valley Shopping Center LLC (“Plaintiff”) Motion to Compel Production of Documents from Defendant and Cross-Complainant KNM Clayton LLC (“Defendant” or “KNM”) dba “Kick N Mule” and for sanctions in the amount of \$885.00 is **granted**.

Background

In this case, the underlying action arises out of a commercial lease between the parties. Plaintiff sued for breach of the lease and guaranty agreements when the Defendants allegedly breached said agreements by abandoning the premises and by failing to pay the charges due thereunder. The Defendants filed a cross-complaint alleging that the plaintiff breached the lease which caused them damage.

Plaintiff’s moving papers claim that Plaintiff served deposition notices to Defendant KNM and Defendant Matt Delima and Jason Haugen for March 24-26, 2025. The deposition notice was